23NWCV02768 23NWCV02768

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-06

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Case Number: 23NWCV02768 Hearing Date: August 6, 2026 Dept: P

GREEN v. LEARY, ET
AL.

CASE NO.: 23NWCV02768 / 25NWCV03772

HEARING: 08/06/2026 @ 9:30 AM

#9

TENTATIVE ORDER

I.
Defendant Rose Leary's demurrer as to the
first, second, fourth, and sixth causes of action is OVERRULED.

II.
Defendant Rose Leary's demurrer as to the
third cause of action is SUSTAINED without leave to amend.

III.
Defendant Rose Leary's motion to strike
is DENIED.

Moving party to give notice.

Defendant Rose Leary demurs to the entire second amended
complaint (SAC) and moves to strike portions of the SAC.

Background

On October 23, 2025, Jacquelyn Dancy, as Special Administrator of the estate of Betty J. Green (Decedent), (Dancy) filed this quiet title action against Sandra Green (Sandra), Rose Leary (Leary), Jocelyn Tyler (Tyler) (collectively, Defendants), and Does 1-50 concerning the real property located at 13614 Behrens Avenue, Norwalk, CA 90650, APN: 8052-011-054 (Subject Property). On October 30, 2025, Plaintiff filed a first amended complaint.

On January 16, 2026, the Court heard Leary's demurrer to the first amended complaint. The Court sustained the demurrer with leave to amend as to the first cause of action for elder abuse, second cause of action for elder abuse, and third cause of action for fraudulent concealment; sustained the demurrer without leave to amend as to the fourth cause of action for unjust enrichment; and overruled the demurrer as to the fifth and sixth causes of action for quiet title and declaratory relief.

On January 23, 2026, the Court granted Dancy's motion to consolidate case no. 25NWCV03772 with case no. 23NWCV02768, with the instant action deemed the lead case.

On January 28, 2026, Dancy filed the operative SAC. The SAC alleges the following: On May 22, 2006, Decedent, mother of Sandra and Leary, conveyed title to the Subject Property through a deed to herself, Sandra, and Leary as joint tenants. (SAC, ¶ 12.) This deed was notarized by Tyler. (SAC, ¶ 12.) Dancy alleges that Sandra and Leary planned to get Dancy out of the house and get Decedent alone to convince Decedent to transfer the Subject Property without Dancy's knowledge. (SAC, ¶ 15.) On March 10, 2009, Leary recorded another deed, notarized by Leary's friend Tyler, in which Decedent transferred her interest to Leary (collectively, Deeds). (SAC, ¶¶ 16-17.) After Decedent passed away on October 5, 2022, no petition was filed because the daughters agreed for Sheila Green (Sheila), daughter of Decedent, to purchase the Subject Property with the proceeds to be split between Decedent's remaining daughters, Sandra, Leary, and Dancy. (SAC, ¶¶ 20-23.) On August 28, 2023, Leary and Sandra filed the Partition Action, of which Dancy was not given notice. (SAC, ¶ 24.) Dancy learned about the facts surrounding the Partition Action from Sheila in May of 2025 and sought appointment to represent Decedent's estate to bring this suit alleging that the Deeds are invalid because they were obtained by fraud and/or elder abuse. (SAC, ¶¶ 25-31.)

The SAC asserts five causes of action: (1) elder abuse - financial against Defendants, (2) elder abuse – undue influence against Sandra and Leary, (3) fraudulent concealment against Sandra and Leary, (4) quiet title against Sandra and Leary, and (5) declaratory relief against Defendants.[1]

On June 30, 2026, the instant demurrer and motion to strike first came on for hearing. The Court continued the hearings to today’s date due to certain unbriefed issues and instructed that Leary may provide supplemental briefing by Thursday, July 23, 2026 and Dancy may provide supplemental briefing by Friday, July 31, 2026.

On July 23, 2026, Leary filed supplemental briefing. On July 29, 2026, Dancy filed supplemental briefing.

Legal Standard

Demurrer
Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

“Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A “[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Motion to Strike Standard

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer (i.e., words, phrases, prayer for damages, etc.). (Code Civ. Proc., §§ 435-437.) A motion to strike lies only where the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc., § 437.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) "The means by which the demurring party met and conferred…and that the parties did not reach an agreement" or (b) "[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 430.41, subd. (a)(3).)

The parties comply with the meet and confer requirement. (Carillo Decl., ¶¶ 13-15.)

Requests for Judicial Notice

Leary requests the Court take judicial notice of the following:

1.
Certificate of Death of Betty J. Green dated April 25, 2023

2.
Order appointing Jacquelyn Dancy as the special administrator of the Estate of Betty J. Green

Leary's request for judicial notice is GRANTED pursuant to

Evidence Code section 452, subdivisions (d), (h).

Dancy requests the Court take judicial notice of the following:

1. Leary's Demurrer to Dancy's First Amended Complaint

2. Demurrer Minute Order, filed January 16, 2026

3. Second Amended Cross-Complaint, filed November 19, 2025

Dancy's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (d).

Discussion

Leary demurs to the SAC on the grounds that laches bars the entire SAC, the statute of limitations bars the entire SAC, the SAC does not plead fraud under the heightened pleading requirements, and the SAC fails to allege a claim for elder abuse.

During the hearing on June 30, 2026, the Court found: "the allegations giving rise to Leary's laches and statutes of limitations arguments remain unchanged, and to that extent, the ruling remains. The Court only addresses Leary's survivor claim argument, as Leary expands on it in the instant demurrer." (Order, 6/30/26.) The Court proceeds to rule on the statute of limitations survivor claim argument.

Statute of Limitations

"Unlike a cause of action for wrongful death, a survivor cause of action is not a new cause of action that vests in the heirs on the death of the decedent. It is instead a separate and distinct cause of action which belonged to the decedent before death but, by statute, survives that event.” (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1264.) “Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person’s death, but survives subject to the applicable limitations period.” (Code Civ. Proc., § 377.20, subd. (a).) Leary argues that based on Decedent’s constructive knowledge of the facts giving rise to her claims, the statute of limitations has run.

Upon review and based upon the expanded arguments by Leary, the Court finds that this action is governed by Code of Civil Procedure section 366.1: “If a person entitled to bring an action dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced before the expiration of the later of…(a) [s]ix months after the person’s death [or] (b) [t]he limitations period that would have been applicable if the person had not died.”

“The statute of limitations usually commences when a cause of action ‘accrues,’ and it is generally said that ‘an action accrues on the date of injury.’ [Citation.] Alternatively, it is often stated that the statute commences ‘upon the occurrence of the last element essential to the cause of action.’” (Bernson v. Browning-Ferris Indus. (1994) 7 Cal. 4th 926, 931.) “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1319.) Under the delayed discovery rule, a cause of action accrues at the time when the cause of action is complete with all its elements. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806 807.) The test for when the statute of limitations on a claim starts to run under the delayed discovery rule is “whether the plaintiff has information of circumstances sufficient to put a reasonable person on inquiry, or has the opportunity to obtain knowledge from sources open to his or her investigation.” (McGee v. Weinberg (1979) 97 Cal.App.3d 798, 803.) “Delayed accrual of a cause of action is viewed as particularly appropriate where the relationship between the parties is one of special trust such as that involving a fiduciary, confidential or privileged relationship.” (Moreno v. Sanchez (2003) 106 Cal.App.4th 1415, 1424.)

Decedent passed away on October 5, 2022. (SAC, ¶ 20.) The SAC alleges that “[p]rior to Decedent passing, she informed DANCY it was her wish that all her daughters get an equal interest in her PROPERTY and Estate when she died." (SAC, ¶ 21.) Additionally, "[p]rior to Decedent passing, Decedent stated she had no idea her PROPERTY had been transferred out of her name. From that conversation it was clear that Decedent was always under the impression she owned 100% of her PROPERTY." (SAC, ¶ 22.) Moreover, the SAC alleges that "at no point in time did Decedent knowingly agree to or know about deed transfers on her PROPERTY and/or any other tortious acts of DEFENDANTS. This fact is based on…diminished health and the power and position DEFENDANTS had over her." (SAC, ¶ 28.)

Since this action was commenced after six months from Decedent's passing, the limitations period is what would have been applicable had Decedent not died. (Code Civ. Proc., § 366.1, subd. (b).) Claims for elder abuse "shall be commenced within four years after the plaintiff discovers or, through the exercise of reasonable diligence, should have discovered, the facts constituting the financial abuse." (Welf. & Inst. Code, § 15657.7.) Pursuant to Code of Civil Procedure section 338, subdivision (d), an action for fraud is subject to a three-year statute of limitations. "The statute of limitations on a quiet title action depends on the nature of the plaintiff's underlying right to relief." (Arthur v. Davis (1981) 126 Cal.App.3d 684, 690.)

Dancy argues that the elder abuse, quiet title, and declaratory relief claims are based on the underlying elder abuse claims, not the fraud claims. "To determine the statute of limitations which applies to a cause of action it is necessary to identify the nature of the cause of action, i.e., the 'gravamen' of the cause of action. [Citations.] '[T]he nature of the right sued upon and not the form of action nor the relief demanded determines the applicability of the statute of limitations under our code.'" (Vera v. REL-BC, LLC (2021) 66 Cal.App.5th 57, 64.) The Court agrees that elder abuse constitutes the gravamen of these claims, therefore these are governed by the four-year statute of limitations. (Welf. & Inst. Code, § 15657.7.) The gravamen of this action is that Decedent, due to her advanced age and health issues, was susceptible to undue influence by her daughters. (SAC, ¶¶ 10-12.)

As to Leary's argument that Decedent had constructive notice of the claims and thus that accrual began in 2006, the Court is not persuaded. Notably, on the face of the complaint, Decedent is explained as having been vulnerable to undue influence by her daughters Sandra and Leary, that Sandra and Leary actually tricked Decedent, and that Decedent therefore never learned that she did not own the Subject Property. (FAC, ¶¶ 11, 13-15, 22.) First, Leary's citation to Civil Code section 1213 establishes that "[e]very conveyance of real property…acknowledged or proved and certified and recorded as prescribed by law from the time it is filed with the recorder for record is constructive notice of the contents thereof to subsequent purchasers and mortgagees." Decedent is not alleged to be a subsequent purchaser or mortgagee in which constructive knowledge can be attributed. Next, Leary does not establish authorities barring a fraud or elder abuse action based on statute of limitations from constructive notice due to access to public records. "Under a long line of cases, the fact that the victim had constructive notice of the truth from public records is no defense to fraud. The existence of such public records may be relevant to whether the victim's reliance was justifiable, but it is not, by itself, conclusive." (Bishop Creek Lodge v. Scira (1996) 46 Cal.App.4th 1721, 1734, citations omitted.)

Here, the Court finds that at most, Leary establishes that there may be a statute of limitations issue based on accrual from the 2006 and 2009 deeds, but it does not arise out of the face of the complaint. This is insufficient at the demurrer stage. (Richtek v. uPI Semiconductor Corp. (2015) 242 Cal.App.4th 651, 658 ["" ' "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.]"'""].) Imputing constructive knowledge to Decedent requires assumptions outside of or contrary to the scope of the pleadings such as whether Decedent had reason to check the public records or that the recordings comported with law. (First Bank v. East West Bank (2011) 199 Cal.App.4th 1309, 1314-15 ["The recording of a document does not impart constructive notice; '[t]he operative event [for purposes of constructive notice] is actually the indexing of the document ... .'"].) Further, the SAC alleges that Decedent, after her stroke, relied on Sandra and Leary "to interpret documents, handle her finances, care for her, and to protect her interest" and that "in or around 2006 ROSE became the primary person handling Decedent's home." (SAC, ¶¶ 11-12.) This relationship bolsters application of delayed discovery under the facts here. (See Parsons v. Tickner (1995) 31 Cal.App.4th 1513, 1526 ["courts have relied on the nature of the relationship between defendant and plaintiff to explain application of the delayed accrual rule."].)

Dancy puts forth case law establishing that the delayed discovery rule can apply to survival claims following a Decedent's passing. (See Parsons v. Tickner (1995) 31 Cal.App.4th 1513, 1526; Asaro v. Maniscalco (2024) 103 Cal.App.5th 717, 731 ["Following her death, [a decedent]'s successors had at least four years to file a claim.”].) In Parsons, a Court of Appeal found that a survival action brought nineteen years after a decedent’s death was not barred by the statute of limitations based on an invocation of the delayed discovery rule. (Parsons, supra, 31 Cal.App.4th at p. 1525.) In Parsons, the complaint alleged that the defendants engaged in affirmative conduct to induce a belief which would prevent the plaintiff from checking, and therefore discovering, their claims. (Id., at p. 1526.)

As in Parsons, the Court finds that Dancy adequately invokes the delayed discovery rule regarding the 2006 and 2009 deeds. As alleged in the SAC, Decedent never had knowledge during her lifetime, or at least, until months before her passing. (SAC, ¶¶ 22, 28.) Additionally, Dancy “was made aware of the facts…on or around May 2025, when Shelia called and informed her of the issue of the PROPERTY sale to Sheila. It was at this time Jacquelyn Dancy asked a paralegal to look up the PROPERTY and discovered the improper transfers alleged in this Complaint. At no point prior did she have any reasons, knowledge, or suspicion to believe DEFENDANTS had transferred the PROPERTY or committed elder abuse own Decedent.” (SAC, ¶ 25.) Moreover, the SAC alleges that in 2006, Sandra and Leary specifically had Dancy leave the Subject Property during the May 22, 2009 signing “to get Decedent alone so they could get Decedent to do something she had no intention of doing, which was transferring the PROPERTY, with no push back from DANCY or knowledge.” (SAC, ¶ 15.) As in Parsons, the SAC alleges the facts were purposely concealed from both Decedent and Dancy; and, as stated above, Leary does not show that Decedent or Dancy had a duty to check public records as a grantor of a deed. Parsons, supra, 31 Cal.App.4th at p. 1528-29, citations omitted [“ ‘ “ ‘[w]here no duty is imposed by law upon a person to make inquiry, and where under the circumstances ‘a prudent man’ would not be put upon inquiry, the mere fact that means of knowledge are open to a plaintiff, and he has not availed himself of them, does not debar him from relief when thereafter he shall make actual discovery.’ ” ’ ”].)

Therefore, the Court finds that with a statute of limitations beginning to accrue upon Decedent’s passing, on October 5, 2022, or months before, Dancy’s action is timely under the four-year statutes of limitations for the claims alleged here.

The Court finds that Dancy’s fraud claim is barred under the statute of limitations. As argued by Dancy, based on the limitations accruing on Decedent's death, "[f]or fraud, there is an 18-day issue." (Supp. Brief, 6:18-19.) The SAC alleges that "Decedent had no idea she had lost title to her PROPERTY. Months before she died Decedent was asked about here PROPERTY and she was shocked to discover it had been transferred out of her name to SANDRA and ROSE." (SAC, ¶ 28.) Interpreting this in favor of Dancy, as Decedent was on notice of a transfer "months" before her passing, the three-year statute of limitations likely began to accrue months before her passing, therefore surpassing the 18-day buffer. At the time that Decedent was aware the Deeds had been transferred, delayed discovery would not serve to delay accrual as Decedent would have reason to search the public records. (Parsons, supra, 31 Cal.App.4th at p. 1528-29.)

Based on the foregoing, the Court overrules Leary's demurrer as to the statute of limitations argument for the elder abuse, quiet title, and declaratory relief claims.

Leary's demurrer to the fraudulent concealment cause of action is SUSTAINED without leave to amend as it is time barred.

Sufficiency of Allegations – Elder Abuse Claims

The Welfare & Institutions Code section 15610.30, subdivision (a) states that a person commits financial elder abuse when the person does the following:

"(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70."

(Welf. & Inst. Code, § 15610.30, subd. (a).) "Among other things, the Elder Abuse Act provides that any person who takes, secretes, appropriates, obtains or retains real or personal property of “an elder”—a person residing in this state who is 65 years or older (see § 15610.27)—for a wrongful use or with the intent to defraud or by undue influence is liable for elder financial abuse.” (Tepper v. Wilkins (2017) 10 Cal.App.5th 1198, 1204-05.) Causes of action for elder abuse are governed by statute and must be pled with particularity. (See Welf. & Inst. Code, § 15600, et seq.; Intrieri v. Superior Court (2004) 117 Cal.App.4th 72, 82.)

The SAC alleges that Decedent was susceptible to undue influence due to a strike and blindness and therefore relied on her daughters to interpret documents, handle finances, and protect her interests. (SAC, ¶ 38a-b.) Thereafter, as noted above, the SAC alleges Sandra and Leary took advantage of Decedent by misrepresenting to Decedent what documents she was signing and to remove other family members from the Subject Property, so others were not aware. (SAC, ¶ 38c-n.) The Court finds that the SAC corrects the issue of conclusory allegations from the complaint. Moreover, there are factual allegations that adequately form the basis of Dancy’s allegations based on “information and belief.” (Brown v. USA Taekwondo (2019) 40 Cal.App.5th 1077, 1106 [“where factual allegations are based on information and belief, the plaintiff must allege “information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’ ”].) Accordingly, Leary’s demurrer to the first and second causes of action are overruled on this basis.

Leary does not address the sufficiency of the allegations of the quiet title and declaratory relief causes of action.

Accordingly, Defendant’s demurrer to the first, second, fourth, and sixth causes of action is OVERRULED.

Motion to Strike

Leary moves to strike portions of the SAC under the first cause of action related to the conspiracy allegations. Specifically, Leary moves to strike Paragraphs 32, 33, 34, 35, and 36.

Leary argues that Dancy’s conspiracy claim is inadequately pled.

In opposition, Dancy argues that a motion to strike is likely not the proper vehicle to challenge the sufficiency of a conspiracy claim. Dancy argues that if it is the right vehicle, it is sufficiently pled.

The SAC alleges vicarious liability through civil conspiracy. The SAC alleges: "PLAINTIFF is informed and believes, and based thereon, alleges that Sandra Green, Rose M. Leary, Jocelyn Tyler, and DOES 25-50, ("CONSPIRACY DEFENDANTS") in their individual capacity and capacity as notaries knowingly and willfully conspired and agreed among themselves and with the other CONSPIRACY DEFENDANTS herein, to commit the following overt acts: 1) unduly influence Decedent to sign the deed; 2) allow forged/improper deeds and notarized documents to be prepared, signed, notarized, recorded and produced; 3) cloud the title of the PROPERTY with fraudulent/improper transfer deeds; 4) fraudulently obtained title to the PROPERTY; and 5) prevent the PROPERTY from being returned to its true owner, Decedent." (SAC, ¶ 33.)

"[A] civil conspiracy does not give rise to a cause of action unless an independent civil wrong has been committed. The elements of an action for civil conspiracy are (1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design." (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1062.)

To the extent that Leary argues that the conspiracy claim is improper to plead, the Court agrees that a motion to strike is the proper vehicle. However, the Court does not agree that Dancy's conspiracy claim is improper. It is not alleged as an independent cause of action, but rather, is alleged generally as appended to the other causes of action.

To the extent that Leary argues that the conspiracy claim is insufficiently pled, a motion to strike is improper. The Court does not assess the sufficiency of allegations on a motion to strike. (White Lighting Co. v. Wolfson (1968) 68 Cal.2d 336, 353 ["The more acceptable method of attacking the sufficiency of a pleading…is by demurrer rather than by motion to strike. The motion to strike has traditionally been, and should continue to be, invoked to attack defects not apparent upon the face of the pleading."].)

Accordingly, Leary's motion to

strike is DENIED.

[1]
The SAC lists declaratory relief as the “sixth” cause of action but does not have a “fifth” cause of action. The Court presumes this is a typographical error.